

Court No. - 5

Case :- WRIT - C No. - 13831 of 2020

Petitioner :- Ramhit

Respondent :- State Of U P And 3 Others

Counsel for Petitioner :- Ranvijay

Counsel for Respondent :- C.S.C.

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

The petitioner has not served the copy of the writ petition on the counsels for the respondent nos.3 and 4.

Learned counsel for the petitioner prays for and is granted three days' time to serve copy of the writ petition on the counsels for the respondent nos.3 and 4.

As prayed, put up as a fresh case on **22.09.2020** before the appropriate Bench.

Order Date :- 16.9.2020

SK

Court No. - 48

Case :- WRIT - C No. - 13831 of 2020

Petitioner :- Ramhit

Respondent :- State Of U P And 3 Others

Counsel for Petitioner :- Ranvijay,Dileep Kumar Srivastava

Counsel for Respondent :- C.S.C.

Hon'ble Manoj Misra,J.

Hon'ble Shekhar Kumar Yadav,J.

Heard Sri Dileep Kumar Srivastava, learned counsel for the petitioner; learned Standing Counsel for the respondents 1 and 2 and Sri Mahboob Ahmad for the respondents 3 and 4.

By this petition, the petitioner has assailed recovery notice dated 18th March, 2020 issued by the respondent no.3 (Executive Engineer, Vidyut Vitaran Khand-II, Purvanchal Vidyut Vitaran Nigam Ltd., Prayagraj.

According to the petitioner earlier recovery notices dated 11th October, 2019 and 22nd October, 2019, issued by the respondent no.3, were served upon him. As they were issued without giving opportunity of hearing and without following the provisions of the U.P. Electricity Supply Code, 2005, the petitioner filed Writ C No.41965 of 2019 which was disposed off by order dated 18th December, 2019 thereby giving opportunity to the petitioner to appear before the Executive Engineer along with his objection. It was provided that upon such appearance/objection, the Executive Engineer would pass a final order. It was also provided that till the disposal of the objection, no coercive action would be taken against the petitioner and, thereafter, if the petitioner is aggrieved by the final order then he would have right to file an appeal under Section 127 of the Electricity Act, 2003.

The case of the petitioner is that he has submitted his objections but those objections were not decided and a fresh impugned recovery notice has been issued.

Sri Mahboob Ahmad, learned counsel for the respondents 3 and 4, has passed on a copy of letter dated 21st September, 2020 annexing therewith final bill dated 21st September, 2020, issued by the Executive Engineer addressed to the petitioner which reflects that a final decision has now been taken on the representation/objection of the petitioner and an amount of Rs.85,849=35 is found due and payable by the petitioner to the corporation. He has also passed on a copy of that letter dated 21st September, 2020 with final bill dated 21st September, 2020 to the learned counsel for the petitioner.

The said letter shall be kept on record.

On the strength of the above letter, Sri Mahboob Ahmad submits that now the petitioner can raise his grievance either in an appeal or he can file an objection to the assessment bill as it is provided in the assessment order that if the petitioner has any objection then he can raise the same within fifteen days.

In view of the above, we deem it appropriate to dispose off the petition by providing that in the light of the subsequent developments, the petitioner would have a right to challenge the final assessment order dated 21st September, 2020 in an appeal under Section 127 of the Electricity Act, 2003. He may also submit his objection to the assessment bill as provided in the bill itself.

With the aforesaid liberty, the petition stands **disposed off**.

Order Date :- 22.9.2020.

Rks.